

Matter Number:	WC	/	2024	/	227
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Form 24 – Notice to admit facts

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
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v

Respondent:	Workers' Compensation Regulator
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PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer PO Box 10119, Brisbane Adelaide Street QLD 4000
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Take notice that the [] applicant **[X] appellant** [] respondent in this proceeding proposes to prove the facts specified below, and if you do not within 14 days serve a notice on the [] applicant **[X] appellant** [] respondent disputing the facts you are taken to admit, for this proceeding only, the facts specified in this notice.

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
A	THE ROLE, AND WHAT IT REQUIRED	
1	Metro South Hospital and Health Service produced a role description for the position of Administration Officer, Switchboard Services, classification AO3, Logan Hospital.	
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week".	
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital".	
4	That role description names the contact for the position as "Chloe Taylor".	
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times".	
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate".	
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information".	
8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes".	
9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined".	

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10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned".	
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities".	
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces".	
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period".	
14	The Appellant has been employed by Metro South Hospital and Health Service since 2019.	
B	THE HOURS THE APPELLANT SOUGHT, AND OBTAINED	
15	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."	
16	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".	
17	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."	
18	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"	
19	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".	
20	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster."	
21	That application of 31 August 2023 records the Appellant's intention to become the Switchboard union delegate.	
22	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."	
23	That email states: "I have no issues with shift work."	
24	That email attached a draft roster spreadsheet prepared by the Appellant.	
25	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."	
26	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."	
27	That email states: "happy to commence Full-time hours from the 16th October 2023".	
C	STRESSOR 1(a) - THE DATABASE, AND THE DIRECTIVES ISSUED WITHOUT CONSULTATION	

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28	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role."	
29	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard."	
30	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor."	
31	That decision records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry."	
32	The Respondent does not allege that the role description for the position of Administration Officer, Switchboard Services was amended at any time after 18 July 2023.	
33	The Respondent does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.	
34	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".	
35	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."	
36	That email states: "This new process is effective from today."	
37	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."	
38	Ms Taylor signed that email as "A/Switchboard Manager".	
39	Ms Taylor's email to all Switchboard staff of 17 May 2024 at 9:30 am states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30."	
40	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week."	
41	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile."	
D	STRESSOR 1(a) - THE DELAY IN COMMUNICATION AND THE MATTERS RAISED IN MAY 2024	
42	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area."	
43	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues."	
44	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent five days after her email of 15 May 2024 at 11:47 am.	
45	The Appellant's rostered shift on 20 May 2024 concluded at 2:00 pm.	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
46	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document."	
47	That email of the Appellant was sent five minutes after the conclusion of his rostered shift on that day.	
48	That email of the Appellant was sent from the Logan Switch account.	
49	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical."	
50	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing."	
51	Mr Richard Parry was at that time a member of the Switchboard staff at Logan Hospital.	
52	The Respondent has not disclosed any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.	
53	The Respondent has not disclosed any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.	
54	The Respondent does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.	
55	The Respondent does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.	
56	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch and Switchboard staff, copied to Ms Reese, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."	
E	STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE	
57	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."	
58	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."	
59	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".	
60	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."	
61	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."	
62	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.	
63	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."	
64	The Appellant did not submit a grievance under HR Policy E12 in 2023.	

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F	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT	
65	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."	
66	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.	
67	The document entitled "Logan Hospital Switchboard Sick Leave Process", version 1.1, is dated 4 February 2025.	
68	The Respondent does not allege that any written procedure governing the notification of unavailability for a rostered shift at Logan Hospital Switchboard existed before 4 February 2025.	
O	STRESSOR 1(g) - THE UNION DELEGATE, AND THE CONSULTATION ON ROSTERS	
69	The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster."	
70	That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form."	
71	The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital."	
72	That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH."	
73	That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff".	
74	That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE."	
75	That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties."	
76	That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume."	
77	That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift."	
78	The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024.	
79	That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025.	

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80	On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!"	
81	The Appellant was endorsed as a workplace delegate on or about 3 November 2025.	
82	The period between April 2023, when the Appellant expressed interest in assuming the role of union delegate, and 3 November 2025, when he was endorsed as a workplace delegate, is approximately thirty-one months.	
83	The Respondent does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.	
84	The Respondent does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024.	
G	STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"	
85	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues".	
86	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant.	
87	That message is signed "Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services, Queensland Health".	
88	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance."	
89	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775."	
90	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour."	
91	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime."	
92	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime."	
93	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended."	
94	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant.	
95	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant.	
96	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay."	
97	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues".	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
98	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted."	
99	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign".	
100	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval."	
101	The myHR submissions report produced as Item 11 records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024.	
102	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)".	
103	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe".	
104	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant.	
105	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed".	
106	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed".	
107	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed".	
108	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024.	
109	In that report, process numbers increase as submission dates increase.	
110	The number 15397775 falls between 15325947 and 15480560.	
111	The number 15605601 falls between 15480560 and 15848692.	
112	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in that report.	
H	STRESSOR 3 - THE ROSTER, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024	
113	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.	
114	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".	
115	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."	

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116	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".	
117	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."	
118	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."	
119	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".	
120	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".	
121	That email attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.	
122	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."	
I	STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024	
123	By letter dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the roster "provides more than 10-hour breaks between shifts".	
124	That letter states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred."	
125	The Respondent does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.	
126	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED".	
127	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".	
128	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".	
129	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."	
130	No fatigue leave was available to the Appellant under clause 18.10 of the Award in respect of the consecutive shifts of 17 and 18 March 2024.	
J	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
131	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."	
132	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."	
133	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."	
134	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."	
135	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."	
136	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."	
K	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE	
137	The Respondent does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.	
138	The Respondent does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.	
139	The Respondent does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.	
140	The Respondent does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.	
141	The Respondent has not disclosed any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.	
L	STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024	
142	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances".	
143	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours."	
144	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break."	
145	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement."	

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146	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature".	
147	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor".	
M	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS	
148	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".	
149	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".	
150	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.	
151	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".	
152	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".	
153	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".	
154	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.	
155	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.	
N	MATTERS THE RESPONDENT DOES NOT ALLEGE	
156	The Respondent does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.	
157	The Respondent does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.	
158	The Respondent does not allege that the Appellant was the subject of any warning, whether written or oral, at any time before 18 June 2024.	
159	The Respondent's amended statement of facts and contentions does not identify the management action referred to in paragraph 27.	

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)

Date:	____ / ____ / ____
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ANNEXURE A – DOCUMENTS

Authenticity to be admitted – Industrial Relations (Tribunals) Rules 2011, rule 49

Take notice that the appellant also asks the respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the respondent does not within 14 days after receiving this notice serve a notice on the appellant disputing the authenticity of those documents, the respondent is taken to admit their authenticity for this proceeding only.

No.	Document	Date	Authenticity admitted / disputed
1	Email, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues"	7 August 2023, 12:21 pm	
2	Email, Ms C Taylor to the Appellant, reply in the same chain	7 August 2023, 1:43 pm	
3	Email, Ms T Reese to the Appellant, reply in the same chain	7 August 2023, 3:13 pm	
4	Email, Ms T Reese to Ms C Taylor, with attachment "Rostered shifts Cory S. past 8 months.xlsx"	7 August 2023, 5:11 pm	
5	Email, Ms T Reese to the Appellant, attaching HR Policy E12 - Individual Employee Grievances	29 August 2023	
6	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"	31 August 2023	
7	Email, the Appellant to Ms T Reese, with attached draft roster	4 September 2023	
8	Email, Ms T Reese to the Appellant	8 September 2023, 11:42 am	
9	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	
10	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard"	15 April 2024, 12:39 pm	
11	Email, Ms T Reese to the Appellant, "Roster Concerns"	26 April 2024, 1:52 pm	
12	Email, the Appellant to Ms T Reese, "Re: Roster Concerns"	1 May 2024, 1:18 pm	
13	Email, Ms T Reese to the Appellant, "RE: Roster Concerns"	8 May 2024, 9:08 am	
14	Email, Ms T Reese to Mr M Pritchard, "FW: Roster Concerns", with attachment "qh-gdl-401-3.3"	10 May 2024, 2:08 pm	
15	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"	14 May 2024, 12:08 pm	
16	Email, Ms S Marriott to Logan Switch, "Respiratory Nurse Educators"	15 May 2024, 11:47 am	
17	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	

No.	Document	Date	Authenticity admitted / disputed
18	Email, Ms C Taylor to Ms A McNamee, "FW: Office Hours and Departmental Directives"	17 May 2024, 1:20 pm	
19	Email, Ms S Marriott to Logan Switch, "FW: Respiratory Nurse Educators"	20 May 2024, 11:03 am	
20	Email, the Appellant (Logan Switch) to Ms C Taylor, "FW: Respiratory Nurse Educators"	20 May 2024, 2:05 pm	
21	Email, Ms C Taylor to the Appellant, "RE: Respiratory Nurse Educators"	20 May 2024, 4:30 pm	
22	Email, Ms T Reese to LBH_HR, "FW: Roster Concerns"	20 May 2024, 4:07 pm	
23	Document, "Logan Hospital Switchboard Sick Leave Process", version 1.1	4 February 2025	
24	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	
25	Document, QH Leave Takings Report for the Appellant, produced by Metro South Health as item 15 of the Notice of non-party disclosure	19 March 2024	
26	Letter, Ms L Forrest, Senior Consultant Human Resources, Logan and Beaudesert Health Service, to the Appellant	7 July 2026	
27	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	____ / ____ / _____

BEFORE SERVICE - delete this note. (1) Verify every quotation against its source document. (2) Check the radio selections above: the appellant proposes to prove the facts, and the notice is served on the respondent. (3) Confirm this is the current version of Form 24 on the Commission's website before filing or serving. (4) Sign and date both signature blocks.